

Final Project Stage 3:

Report (Summary & Bibliography)

Case Study: TikTok, Data Collection, And Digital Privacy

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Presentation Summary

Case Study: Earlier this year in March, the House legislature passed the “Protecting Americans from Foreign Adversary Controlled Applications Act,” with an overwhelming 362 to 65 vote. The President and key Senate members also supported the bill, and it was recently signed into law (Warburton, 2024). The bill, in essence, provides the President with the power to deem social media applications “controlled by a foreign adversary;” this status prevents in whole the distribution or hosting of the application in the United States, as well as precedent for further actions (like fines) if necessary. Any platform would have 9 to 12 months to change ownership to avoid these effects. Though it specifically identifies TikTok, it could be used for other platforms in the future (H.R. 7521, 2024). The bill has since faced both bipartisan support and criticism. Government officials have already identified TikTok as a national security risk (though details have not been given to the public), concerns that it could be weaponized to spread misinformation, spy on citizens, or influence US elections. Opponents argue that the bill would restrict free speech, enforce data monopolies, and set dangerous precedent for government activity (Maheshwari, 2024; Walsh, 2024; Warburton, 2024).

Ethical Issues Raised: My focus is on data rights; primarily the collection, handling, and protection (from breaches or other misuse) of user information, though I do consider well as how the platform itself might be abused. That said, the US and China have been in a trade war for some time, and the divestment of such a major platform would have huge consequences (Maheshwari 2024; Zhu, 2020). From investigating, I’ve concluded that the bill is flawed both in that it illustrates a double standard and that it is largely ineffective with data rights concerns. As such, I do not think the ramifications are worthwhile, and alternatives ought be pursued.

Argument 1: These data collection patterns are also not unique to TikTok, and the trade of user data is nearly ubiquitous even in American markets (Saura, 2021; Klais, 2022). Furthermore, H.R 7521 is not the only attempt in recent years to restrict TikTok: in 2020, the prior administration attempted similar measures, and there has been a consistent effort to find precedent to remove TikTok from the country (Maheshwari et al., 2024). Yet, the US neglects the fact that our own platforms display the same problems. Facebook faced great scrutiny over potential election interference, both through potential foreign actors and firms like Cambridge Analytica. US platforms generally receive nothing more than a fine, though the focus here is removal entirely. This is a clear disparity, and the existence of such a double standard severely undermines this bill's integrity. Regulatory efforts ought not be so disparate across platforms.

Objection 1: A1 provides a false equivalency. While it is true that all platforms collect user data, TikTok collects more than nearly every social media platform and sells this data to a large number of 3rd parties (Blancaflor, 2023; Klais, 2022). Furthermore, in response to the bill, the platform was leveraged using collected data to urge users into speaking against it – this illustrates exactly a use of it attempting to undermine the American legal process (Walsh, 2024). Certainly, TikTok poses more of a danger than American platforms, and comparing the two is in bad faith.

Response 1: O1 fails to consider the larger picture. Companies like Google, for example, perform mail services, search services, phones, etc. Even companies like Meta have been similarly branching out. These groups can collect data from far more outlets, and apply it in far more ways. Raw data collection statistics cannot be considered in a vacuum; the difference in “danger” may not be so large as they would suggest. Furthermore, the objection's conclusion does not follow. At no point has the US Government provided such an ultimatum to a media

company as the result of a data breach or mishandling, nor when they were utilized to spread misinformation or influence elections, despite tangible instances of both. Even if TikTok is particularly dangerous, a double standard may still be present; these are not mutually exclusive.

Argument 2: H.R 7521 is largely ineffective. Concerns over data collection, misinformation, or even spying are all ubiquitous across the market (Saura et al., 2021). Transferring ownership of TikTok to another party would not in any way impact the ability for its platform to be abused, only who could abuse it. Given this, the bill is largely ineffective. Yet, there are many valid concerns (as discussed above) about the effects a bill like this would have (Maheshwari, 2024; Walsh, 2024; Warburton, 2024; Zhu, 2024). Instead, attempts to mitigate these problems ought to reside with strengthening data rights and educating citizens about them (Blancaflor et al., 2023).

Objection 2: A2 overstates what is feasible; this bill does as much good as we can. The United States does not have the jurisdiction to regulate foreign platforms such as TikTok; the best way to ensure proper conduct is followed is to transfer it to US ownership. Failing this, banning the platform ensures that US users cannot be harmed (and banning it elsewhere is equally out of the government's ability). Furthermore, changes in ownership provide a meaningful difference. Foreign adversaries are most motivated to misuse the platform against the country, so transferring it to a neutral party prevents this. This would also likely restructure ByteDance's corporate and management goals to better align with protections of data (moving to a more Liberal culture). Any negative consequences are necessary to ensure proper conduct.

Response 2: O2 begs the question: if the results of this bill are "better," for whom, and why; certainly, it doesn't seem like data rights are the focus, and it doesn't benefit anyone but the US government. Secondly, it assumes that there are no alternatives. Human factors are a significant

part of data breaches, yet are underrepresented in literature (Schlackl, et al., 2022). This implies that focusing on educating users and lawmakers about data rights and proper use is important, and would lead to better outcomes. Rewriting domestic laws would also prevent many of the dangerous actions both TikTok - and especially other platforms - are able to take in the US, and would avoid both anti-monopoly concerns, and that a US consolidation of media platforms makes it more difficult for users to access news from around the world (Blancaflor, 2023; Saura, 2021; Zhu, 2020). Finally, the objection (and the bill) assumes that a Liberal ethical framework is inherently “better,” which is not true. Value Pluralism is a concept supported by philosophy literature, which outlines a variety of frameworks which can be applied *across ethical schools* and allow value judgements between them (Mason, 2023). This allows consideration not only of liberal values, but virtue, or any others applicable. I would argue that because not only are social media platforms themselves but many of the concerns they face global in nature, a more global approach at dealing with surveillance capitalism using a pluralist framework would be an effective alternative. This still allows for local regulatory actions, avoids market hegemony, and shows respect for the countries/cultures involved. Furthermore, it could apply to any global social media platform and its operations in any country, not just TikTok in the US.

Annotated Bibliography

Blancaflor, E., Alcantara, N. C., Javier, A. C., Macalintal, E. B., San Pedro, I. J., & Valero, C. (2023). Security risks on video sharing Social Media Platforms: A literature review. *Proceedings of the 2023 11th International Conference on Computer and Communications Management*. <https://doi.org/10.1145/3617733.3617771>

Summary: The authors provide a small study on Filipino teen users, and relate this to some existing literature on digital security. The authors find that the majority of users are either unaware of data collection or do not fully understand its extent. As such, they argue that many people under this demographic are particularly vulnerable to leaks or misuse of collected information - which is worrying given the popularity of media platforms in this age range.

Reflection: It is worth noting that the study itself is severely limited, that the article is cynical and I would even say antagonistic. The authors placing almost the entirety of the blame on “user laziness” is unfair, given that the majority of privacy policy is frequently made incredibly difficult to understand even for the vigilant user.

Relevance: While I would not deem this a fully credible or reliable source, it does provide some useful information in how it contextualizes other sources. For example, this report notes that TikTok collects a huge variety of user information - including behavioral data - and shares it with third parties more than many modern media sites. They also note that while there were attempts some years prior towards banning TikTok, the CIA report found no evidence of data leak to the Chinese government.

Klais, B. (2022, January 20). *New research across 200 IOS apps hints that surveillance marketing is still going strong.* URLGenius. <https://app.urlgeni.us/blog/new-research-across-200-ios-apps-hints-surveillance-marketing-may-still-be-going-strong>

Levine, A. S. (2024, April 17). *TikTok mishandled the data of hundreds of top American advertisers.* Forbes. <https://www.forbes.com/sites/alexandralevine/2024/04/17/tiktok-mishandled-advertisers-data-bytedance-china>

Maheshwari, S., McCabe, D., & Karni, A. (2024, March 13). *House passes bill to force tiktok sale from Chinese owner or ban the App.* The New York Times. <https://www.nytimes.com/2024/03/13/technology/tiktok-ban-house-vote.html>

Mason, Elinor, "Value Pluralism", *The Stanford Encyclopedia of Philosophy* (Summer 2023 Edition), Edward N. Zalta & Uri Nodelman (eds.), <https://plato.stanford.edu/archives/sum2023/entries/value-pluralism/>

Summary: This outlines the concept of moral pluralism: that there are many different kinds of moral values. This does not assume that all are *equally* viable, only that there are multiple options which *are* viable. Utilitarians for example tend to be monist as opposed to pluralist, with the notion that the only meaningful “good” is the tangible reduction of suffering or increase in happiness (though not always).

Reflection: Much of the appeal to this line of thinking is that in having many values, it may be better suited to make sense of the complexities of moral decision making (it must, for example, deal with how values can be compared, if they are comparable at all).

Interestingly, the authors propose that non-foundational pluralism is perfectly compatible

with monism: there may be distinct types of values, but these can be compared via their contribution to more ‘base’ principles.

Relevance: This suggests that there is an existing framework supported by the literature which allows for the synthesis of different values across frameworks. For my purposes, this illustrates that there is indeed a way by which to address differences in values between different cultures, which I hold as necessary for making policy decisions on a global scale. However, the details of such a system are outside of the scope of my work.

Protecting Americans from Foreign Adversary Controlled Applications Act, H.R. 7521, 118th Congress. (2024). <https://docs.house.gov/billsthisweek/20240311/HR%207521%20Updated.pdf>

Summary: This bill provides the power to the President of the United States to identify social media applications as national security threats on the basis of control by a deemed foreign adversary. This status prevents in whole the distribution or hosting of the application by any entity under United States jurisdiction, and procedure for data requests, severe fines, and other forms of action against the entity if deemed necessary by the President or Attorney General.

Reflection: The bill specifically identifies TikTok and their parent company ByteDance in an attempt to mitigate a perceived security threat due to potential for abuse by the Chinese Communist Party. Other than this general notion, the overall grounds of the bill are missing and best seen from outside context.

Relevance: This is literally the bill that I am doing this entire project about.

Saura, José & Palacios-Marqués, Daniel & Iturricha-Fernández, Agustín. (2021). Ethical design in social media: Assessing the main performance measurements of User Online Behavior

Modification. *Journal of Business Research*, 129, 271–281.

<https://doi.org/10.1016/j.jbusres.2021.03.001>

Summary: The authors perform a review of the ways in which surveillance capitalism dictates the design and actions of social media systems at large. As massive systems “sell” human communication, these systems are particularly well suited towards manipulation of users’ behavior; this may be for advertising (to gain as much income to the company as possible) or for tailoring and ‘feed’ (to keep people using the system). The authors argue that on this basis ethical design principles are largely ignored, and suggest that the existing state of social media and surveillance capitalism is highly unethical.

Reflection: The argument is well-supported, though some counters are present in the lens of utilitarianism (it may result in a better platform) and even to an extent liberalism (ToS outlines data collection and users waive their rights accordingly). Also, addressing surveillance capitalism as a whole is incredibly difficult.

Relevance: These activities are facilitated by wanton collection of user data, frequently without their knowledge or understanding, as well as subtle design choices to convince users they are “in control” when in reality their actions are being strongly influenced by algorithmic processes outside of their control. This clearly shows that this is a problem inherent to the industry and not any one platform.

Schlackl, F., Link, N., & Hoehle, H. (2022). Antecedents and consequences of data breaches: A systematic review. *Information & Management*, 59(4), 103638.

<https://doi.org/10.1016/j.im.2022.103638>

Summary: The authors outline a number of common themes for both the causes and results of data breaches, and provide some useful statistics. They note that larger organizations are more prone to breaches, and while it is unclear the effectiveness of security regulation, mandated audits are helpful; that literature generally focuses on the organizational effects and not those on consumers whose data was affected.

Reflection: There is a huge amount to unpack in this report, most of which are summarization of existing literature, which makes it difficult to pull out coherent arguments or claims from this piece. However, some of the findings are at least in and of themselves somewhat helpful.

Relevance: The gaps in literature are of tangential use; the effects of data breaches on consumers themselves, as well as more comprehensive investigation on human factors as contributing causes to data breaches. Also, noting that external audits as a proactive form of regulation is influential to my proposal.

Walsh, D., & Allyn, B. (2024, March 13). Why the House voted to ban TikTok and what could come next. NPR. <https://www.npr.org/2024/03/13/1237501725/house-vote-tiktok-ban>

Warburton, M. (2024, April 18). US Congress moves ahead on Bill to push TikTok's Chinese owner to sell. Reuters. <https://www.reuters.com/world/us/us-congress-moves-ahead-bill-push-tiktoks-chinese-owner-sell-2024-04-18/>

Zhu, Y. (2020). The expectation of TikTok in international media: A critical discourse analysis. *Open Journal of Social Sciences*, 08(12), 136–148. <https://doi.org/10.4236/jss.2020.812012>

Summary: The authors provide a review of various media and government opinions on TikTok, including its general expectations, in light of the attempt to ban the platform in 2020. The review is *incredibly* critical of the United States, arguing that it is attempting

to unilaterally exert “hegemony” over foreign markets, and that this sentiment appears to not be present at the surface level in the UK.

Reflection: This piece feels pretty strongly biased against US actions, whether this is grounded or not. However, the inclusion of this perspective is helpful insofar as it is different from most existing literature I was able to find.

Relevance: While it may not be entirely unbiased, and its sample size is small, the context it provides to the issue of US regulation & TikTok is valuable. It also serves as a more academic criticism of US conduct, compared to more popular reporting, which is at least somewhat useful to reference.